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JUDGMENT SHEET

LAHORE HIGH COURT
MULTAN BENCH MULTAN
(JUDICIAL DEPARTMENT)

Civil Revision No.1077 of 2024

Mushtaq Ahmad and another

Vs.

Saiqa Ch., etc.

Petitioners by:- Mr. Tahir Mahmood, Advocate.

Respondents by:- Syed Naeem-ul-Hassan Bukhari, Advocate
for respondents No.1 to 5.

Date of hearing: - 12.06.2025

JUDGMENT

RAHEEL KAMRAN, J:- The petitioners through this Civil Revision under section 115 of the Code of Civil Procedure, 1908 (CPC) have assailed order dated 10.10.2024, whereby the Additional District Judge, Vehari observed as under: -

“Thus, in the background of above referred esteemed authorities and keeping in view of an application for additional evidence wherein the applicants are intended to bring on to the record of file a Death Certificate of deceased Sanaullah and production of this certificate as an additional evidence on to the record of file is again dependent upon arguments from both sides with the aid of already produced evidence from both sides vis a vis pleadings of the parties and thus can better be adjudicated upon through a composite judgment. Accordingly, this Court will proceed to decide instant appeals as well as said application for additional evidence conjointly.

Now to come up for complete arguments on behalf of respondents as well as appellants without fail on 15.10.2024.”

2. Facts giving rise to this civil revision, briefly are that respondents No.1 to 5 instituted a suit for declaration against petitioners and others, which was contested by petitioners and defendants No.10 to

17 as well as 19 through separate written statements. The Trial Court after framing the issues and recording of evidence of the parties partially decreed the suit by way of judgment and decree dated 06.04.2022. Feeling aggrieved, the petitioners preferred an appeal. During pendency of the appeal, the petitioners moved an application under Order XLI Rule 27 read with section 151 of CPC for permission to produce additional evidence. The application was listed for arguments on multiple dates and ultimately, the impugned order was passed.

3. Learned counsel for the petitioners submits that the Appellate Court has erred in appreciating the *ratio decidendi* laid down in the case cited as "Muhammad Azam v. Muhammad Abdullah through legal heirs" (2009 SCMR 326) while holding that the said Court will be deciding the application of the petitioners for additional evidence at the time of final decision of the appeal, which otherwise is likely to prejudice the case of the petitioners as it is expedient to decide such application separately so that an aggrieved party may have recourse to further proceedings before the higher forum. Further contends that on the one hand the Appellate Court fixed the case on multiple dates for arguments on the application in the first instance, and on the other hand, took a somersault and passed the impugned order directing the petitioners to advance arguments on the main appeal.

4. Conversely, learned counsel for respondents No.1 to 5 has supported the impugned order while relying on the findings recorded therein.

5. Arguments heard. Record perused.

6. The impugned order, in essence, is not a final adjudication of the merits of the case but rather a procedural directive outlining the course of action for its decision. This Court, therefore, is confined to see whether this intended course is legally sound or if there exists any impediment in law to adopt such a course.

7. Under the law, particularly concerning application for additional evidence, there is no specific rule that mandates such an application must be decided prior to the final judgment in the main

appeal through a separate order. The appropriate course of action, whether to decide the application first or conjointly with the appeal, is entirely dependent on the specific facts and circumstances of each case and the court's assessment of what is necessary to achieve a just and holistic adjudication. The paramount consideration remains the ability of the court to pronounce a satisfactory and complete judgment, which may, in certain circumstances, be best achieved by integrating the consideration of additional evidence with the overall merits of the appeal.

8. The Appellate Court in view of the factual context of the case rightly observed that the adjudication of the application for additional evidence is intrinsically linked to and dependent upon a comprehensive consideration of the arguments from both sides, in conjunction with the evidence already available on record and the pleadings of the parties. Therefore, the Appellate Court's choice to decide the appeal along with the application for additional evidence conjointly is a sound exercise of discretion, aimed at efficient and holistic adjudication, and does not result in any miscarriage of justice or prejudice to the petitioners' rights. This approach by the appellate court aligns with the *ratio decidendi* in the case of Sultan Ali alias Sultan through L.Rs. and others v. Rasheed Ahmad and 45 others (2005 SCMR 1444) wherein the Supreme Court of Pakistan observed as under: -

“The High Court has not decided the appeal on merits and has accepted it only on the ground that the First Appellate Court acted illegally in deciding the respondents' application for the permission to produce additional evidence under Order XLI, rule, 27, C.P.C. along with the main appeal. It has been held that this procedure adopted by the First Appellate Court was not sustainable keeping in view the law as declared by this Court in the judgment reported as Muhammad Umar v. Muhammad Qasim (supra). We are afraid that the view expressed by the learned Judge in Chambers of the Lahore High Court is incorrect. No such law has been declared by this Court that in every case the Court has to decide the application for permission to adduce additional evidence prior to the decision of the main appeal through separate orders and cannot give a composite judgment. In Muhammad 'Umar's case (supra) the Appellate Court had dismissed the appeal without deciding the application under Order XLI, rule 27,

C.P.C. Order XLI, rule 27, C.P.C. ought to have been adjudicated upon before disposing of the appeal and the words "before disposing of the appeal" employed by this Court in the said judgment did not and do not mean that the same cannot be done by the Court seized of the matter, in the same judgment. In the case in hand the First Appellate Court in paras.5 of its judgment, had given reasons in detail for dismissing the application for producing the additional evidence and thereafter proceeded to dismiss the appeal on merits. The procedure adopted by the First Appellate Court did not suffer from any illegality and was in accordance with the procedural law and the law as settled by the superior Courts of this country."

The case law "Muhammad Azam v. Muhammad Abdullah through legal heirs" (2009 SCMR 326) relied upon by the learned counsel for the petitioners is distinguishable as in that case a miscellaneous application was not adjudicated upon despite the High Court's earlier observation that it would be decided concurrently with the main revision.

9. As regards contention of the learned counsel for the petitioners regarding prejudice, stemming from the inability to challenge an adverse ruling on the application before a higher forum immediately, holds no practical weight. If both the application for additional evidence and the main appeal are decided conjointly and ultimately go against the petitioners, they retain full opportunity to challenge both aspects of the decision before the higher forum. This integrated approach in no way deprives the petitioners of their right to seek further recourse. Similarly, should the application be decided in favor of the petitioners and despite that the main appeal is dismissed, they would still have the avenue to challenge the appeal's decision, without any necessity to separately challenge the favorable ruling on the application.

10. Additionally, an important consideration in such matters is the content and potential impact of the intended additional evidence. If the appellate court determines that the evidence sought to be produced is of such a nature that its inclusion on the record could fundamentally alter the decision of the main case, then it might indeed be prudent to decide the application separately through a distinct order. This would allow for proper consideration of its admissibility and relevance before proceeding

to the merits of the appeal. However, if the appellate court, after initial assessment, forms the view that the proposed evidence, even if admitted, would likely have no material impact on the outcome of the main case, then there is no compelling need to decide the application for additional evidence separately. In such a scenario, a conjoint decision of the application and the main appeal becomes a matter of judicial economy and efficiency. Such approach significantly contributes to the sound administration of justice by streamlining proceedings, preventing unnecessary delays, and ensuring the expeditious dispensation of justice.

11. The learned counsel for the petitioners remained unable to demonstrate any infirmity regarding the Appellate Court's selection of the particular course of action to decide the application for additional evidence as well as the main appeal conjointly. The petition in hand, therefore, is without any substance and is dismissed as such.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE